

Keris Strike 2026 Material Handling Equipment (MHE)

PERFORMANCE WORK STATEMENT (PWS)

Part 1 General Information

1. General: This is a non-personal service(s) contract under which the personnel rendering the service(s) are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.

1.1 Description of Services/Introduction: This is a non-personal service(s) contract to provide Equipment Rental to US government personnel.

1.2 Background: US Forces consistently require Equipment Rental services across the Pacific in support of a variety of operations to include logistics and field operations, military construction, and ENCAP projects. Equipment Rental service requirements are anticipated to continue. An Equipment Rental will allow the Government and Contractors to fulfil these anticipated requirements more effectively.

1.3 Scope: The Contractor shall provide non-personal service(s). The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items necessary to perform services as described in the PWS and associated contract documents, except for those items specified in Part 3 Government Property and Services (**or those items identified at the Order**). The Contractor shall perform to the standards and acceptable quality levels identified in this PWS and associated contract documents.

1.3.1 Specific services for this Equipment Rental agreement include, but are not limited to, heavy equipment including, but not limited to, construction equipment, material handling equipment, and other heavy equipment requiring a driver. Additionally, services for this Equipment Rental agreement include, but are not limited to, non-drivable rental equipment and tools such as power generation, lighting, and tools. Also, services for this Equipment Rental agreement include, but are not limited to, equipment rental with crews such as ambulances and firetrucks. The terms and conditions set in this PWS regarding the heavy equipment consist of both contractors provided equipment and operators (e.g. Forklift with contractor operator). However, it is within the scope of this agreement to contract heavy equipment without a contractor operator at the order level (e.g. Forklift with no contractor operator and operated by the Government). Specific Terms and Conditions for Heavy Equipment without a contractor operator will be established at each order in addition the Terms and Conditions in this PWS.

1.3.2 Due to the volatility of US Army Military Exercises and Operations, contractors must remain flexible to changes in the periods of performance, quantities, and potential for the addition/reduction of services within the general scope of the contract. Contractors will provide individual unit pricing at the order level in their quotes to facilitate these changes.

1.4 Objectives: *The objective is to provide US Government personnel with equipment rental identified at the individual order.*

1.5 General Information:

1.5.1 Quality Control Plan (QCP): The contractor's existing quality assurance system shall be utilized in accordance with FAR 12.208.

1.5.1.1 Reserved.

1.5.1.2 The Contractor shall inform the COR, if applicable, or Contract Specialist otherwise, of issues or potential issues that might affect the performance within two (2) hours of identifying those issues. Verbal reports shall be followed up by written reports within 1 day of discovery of the issue.

1.5.2 Quality Assurance: The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the acceptable quality levels (performance thresholds).

1.5.3 Recognized Holidays: The following provides information on recognized holidays for the purpose of the PWS. If submittal of any documentation (e.g. deliverables, submittals, etc.) deadlines fall on a holiday, the closest work day prior to the holiday will apply as the deadline for submittal.

1.5.3.1 U.S. Holidays: Work shall be performed on U.S. federally recognized holidays unless otherwise directed by the Contracting Officer.

1.5.3.2 Host Nation Holidays: Work shall be performed on local Host Nation holidays unless otherwise directed by the Contracting Officer.

1.5.4 Operating Hours: The Government facility office hours, facility operating hours, and the Contractor support hour requirements often coincide, however, they may differ. Please refer to the following.

1.5.4.1 Government Facility Office Hours: Reserved.

1.5.4.2 Government Facility Operating Hours: Reserved.

1.5.4.3 Contractor Support Hours: The Contractor shall maintain an adequate workforce at all time for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce is essential. See Part 5 of the PWS for specifics; coordinate with the Contracting Officer Representative (COR), if applicable, for scheduling during contract performance.

1.5.4.3.1 Contractor Work Plan: Reserved.

1.5.5 Training Holidays: Reserved.

1.5.6 Place of Performance: Each order will specify the location. General place of performance will be in Malaysia.

1.6 Security Requirements: The following information is provided on security related matters.

1.6.1 Security Program: Reserved.

1.6.2 Personnel Security Clearance Requirements: Reserved.

1.6.3 Installation Access: Access to U.S. and Host Nation installations, buildings and controlled areas is limited to personnel who meet security criteria and are authorized. Failure to submit required information/data and obtain required documentation or clearances will be grounds for denying access to installations, buildings and controlled areas. The Contractor shall ensure that any subcontractors used in performance of this contract complies with these requirements and that all employees, of both the Contractor and any subcontractor utilized by the Contractor, are made aware of and comply with these requirements. The Contractor is required to provide the name and copy of photo identification for all contractors conducting work on each camp within 1.5.6 Place of Performance above. Contractor will be required to show proof of identification before being granted access. Contractors are advised that badging for citizens/residents of certain countries is restricted or unavailable. Contractors must contact the Badging Office to obtain a list of restricted countries and any applicable waiver processes. The contractor is responsible for all required coordination with host nation military and host nation and local authorities, to obtain base passes or Area Passes that provide appropriate access for their drivers and vehicles to military facilities. Should the contractor have difficulty obtaining the necessary passes, they must contact the Contracting Officer immediately.

1.6.3.1 Installation Pass Log: Reserved.

1.6.3.2 Individual Termination or Expiration of Employment: Reserved.

1.6.3.3 Contract Termination or Cancellation: Upon termination or cancellation of this contract and Order, the Contractor shall collect all outstanding installation access passes, if applicable, and return them to the issuing office within 3 days.

1.6.3.4 Common Access Cards (CAC) and CAC Log: Reserved.

1.6.3.5 Contractor Responsibility: The contractor is responsible for coordinating base access and attaining base access to perform the services in this PWS. All concerns regarding base access must be brought to the attention of the contracting officer during the solicitation period of each order, prior to the RFI suspense date.

1.6.4 Background Checks: Reserved.

1.6.4.1 U.S. Citizen: Reserved.

1.6.4.2 Local Nationals and Third Country Nationals: Reference 1.24.1 for compliance with local laws.

1.6.5 Physical Security: The Contractor shall safeguard their own equipment without the assistance of the US Government.

1.6.6 Operations Security (OPSEC) Requirements: Contractor personnel shall adhere to facility security policies and restrictions. The Contractor shall immediately report suspicious activities to security personnel.

1.7 Key Control: Reserved.

1.8 Post Award Conference/Periodic Progress Meetings: The Contractor shall attend any post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The Contracting Officer, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the Contracting Officer will apprise the Contractor of how the Government views the Contractor's performance and the Contractor shall apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.8.1 The Contractor shall attend, participate in, and furnish input to scheduled and unscheduled meetings, conferences, and briefings that relate to the functions and services herein as required by the Government to provide effective communication and impart necessary information. The Contract Manager or designated representative shall attend meetings as requested by the Government. Meeting attendees shall at times include Contractor managerial, supervisory, and other personnel knowledgeable of the subject matter. Meetings may start or end outside of regular duty hours.

1.9 Contracting Officer's Representative (COR): Refer to Part 2 of this PWS for the definition of a COR. As determined by the Contracting Officer, a COR will be appointed and

identified by letter of designation, a copy of which will be provided to the Contractor by the Contracting Officer. The designation letter states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is not authorized to obligate the Government. If the work is not written in the contract, the COR is not authorized to request new work. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract, perform inspections necessary in connection with contract performance, maintain written and oral communications with the Contractor concerning technical aspects of the contract, issue written interpretations of technical requirements, including Government drawings, designs, specifications, monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies, coordinate availability of Government property, and coordinate site entry of Contractor personnel.

1.10 Key Personnel: The following personnel are considered key personnel by the Government: the contractor's lead contract manager and/or site manager. Key personnel MUST be fluent in English in both spoken, listening, and written form.

1.11 Identification of Contractor Employees: All Contractor personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties must identify themselves, to include proper marking of signature blocks in correspondence, to avoid creating an impression in the minds of members of the public that they are Government officials. The Contractor shall ensure that all documents or reports, produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.12.1 Reserved.

1.12.2 Reserved.

1.13 Contractor Travel: Any contractor travel is done so at the expense of the contractor.

1.14 Other Direct Costs (ODCs): Reserved.

1.15 Data Rights: Reserved.

1.16 Non-Disclosure Requirements: Reserved.

1.17 Protection of Government and Contract Information: Per Public Use Notice of Limitations stated by Defense imagery Management operations Center and contained at www.dimoc.mil/resources/limitations/, the Contractor shall not cite any information (e.g., contract information, pictures, locations, etc.) obtained through this contract on any hard copy or digital marketing tools to include its company website.

1.18 Non-Disclosure Statements: Reserved.

1.19 Organizational Conflict of Interest (OCI): Reserved.

1.20 Phase In /Phase Out Period: Reserved.

1.21 Safety: The following provides information pertaining to Safety and Accident Prevention: All contracted personnel shall comply with the Army Safety Program AR 385-10 and DA PAM 385-10. The contractor shall ensure that each employee is equipped with U.S. and Host Nation Safety equipment including but not limited to: protective clothing, eye protection and hearing protection in accordance with (IAW) Occupational Safety & Health Administration (OSHA) Code of Federal Regulations (CFR) Title 29 Part 1910 (OCCUPATIONAL SAFETY AND HEALTH STANDARDS). They must adhere to any additional Host Nation and local standards imposed on the contractor that are in addition to the U.S. standards listed in the CFR above.

1.21.1 Safety Laws and Regulations: The Contractor shall comply with FAR 52.236-13, Accident Prevention (November 1991), the references contained therein, as well as all applicable Host Nation Safety Laws and Regulations.

1.22 Environmental Compliance: The contract shall adhere to all Host Nation environmental laws, to include, but not limited to, the proper disposal of hazardous materials.

1.22.1 Environmental Compliance Plan and Program: Reserved.

1.23 Required Training: Reserved.

1.24 Responsibilities: The Contractor shall assume total responsibility for all requirements stated herein on the commencement date of the performance period. The Contractor shall perform as specified in this Contract and under the direction of the Contracting Officer (KO).

1.24.1 Work Responsibility: The Contractor shall perform all work and assume responsibility for planning, programming, administering, managing, and executing all functions necessary to provide the services specified in this PWS. The Contractor shall conduct work in accordance with this PWS and all applicable United States (U.S.), Host Nation, and local laws, regulations, standards, provisions, and directives to include applicable publications in Part 5. The Contractor shall ensure that all work meets the level of service, performance standards, or tolerances specified in the PWS or in applicable referenced documents. Some services under this Contract may be performed at designated facilities, or portions of installations, by in-house Government personnel or by other contractors.

1.24.2 Administrative Responsibility: The Contractor shall perform all related administrative actions required to provide services or perform work such as material requisitioning, quality control (QC), financial control, meetings, and correspondence. The Contractor shall also maintain accurate and complete records, files, and libraries of

documents to include all U.S., Host Nation, and local regulations, standards, provisions, codes, laws, technical manuals, and manufacturers' instructions and recommendations that are necessary and related to the functions being performed. The Contractor shall compile historical data, prepare required reports, and submit information as specified by the Deliverable Schedule.

1.25 Liability: The U.S. Government accepts no liability for the actions of the Contractor or his employees and/or agents.

PART 2 DEFINITIONS & ACRONYMS

2. Definitions and Acronyms

2.1 Definitions: Although not inclusive of every term used within this PWS, the following provides a list of definitions used throughout this PWS and commonly used in the acquisition field.

Contracting Officer – means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) – As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. DoD Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: “Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer’s technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management.” In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing other surveillance support personnel to assist the COR when needed, “...These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs.”

Contractor – means a supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

Contractor-acquired Property - means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract and to which the Government has title.

Day – means, unless otherwise specified, a calendar day.

Defective Service – means a service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable – means anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

Government-furnished Property – As reflected in FAR 52.245-1, Government-furnished Property “means property in the possession of, or directly acquired by, the Government and

subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract

Government Property - means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

Property Administrator - means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

High Level Objective (HLO) – means a key overarching result-based objective for a project necessary to achieve the project's vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

Physical Security – means that part of security concerned with physical measures designed to safeguard personnel; to prevent unauthorized access to equipment, installations, material, and documents; and to safeguard against espionage, sabotage, damage, and theft.

Quality Assurance – (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) – means the key Government-developed surveillance process document, and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control – means all necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement – means the specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on

“what” is to be accomplished; however they are not prescriptive in describing “how” the outcome is to be achieved. Each HLO may have several statements to flesh out the areas necessary to meet the objective. Statements are similar to Level 3 in a Work Breakdown Structure.

Subcontractor – means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Work Day - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

2.2 Acronyms: Although not inclusive of every term used within this PWS, or that may be included in an acquisition, the following provides a list of acronyms commonly used in the acquisition field.

ACOR	Alternate Contracting Officer's Representative
AE	Army in Europe
AFARS	Army Federal Acquisition Regulation Supplement
AHA	Activity Hazard Analysis
AOR	Area of Responsibility
AR	Army Regulation
AT	Anti-terrorism
ATCTS	Army Training Certification Tracking System
CAC	Common Access Card
CCE	Contracting Center of Excellence
CFE	Conventional Forces Europe
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer's Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DoD	Department of Defense
FAR	Federal Acquisition Regulation
FRG	Federal Republic of Germany
GFP	Government Furnished Property
HLO	High Level Objective
HIPAA	Health Insurance Portability and Accountability Act of 1996
IA	Information Awareness
IAC	Installation Access Control
IACO	Installation Access Control Office

ID	Identification
IGCE	Independent Government Cost Estimate
IT	Information Technology
JTR	Joint Travel Regulation
JPAS	Joint Personnel Adjudication System
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
OPSEC	Operations Security
PA	Property Administrator
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
RA	Requiring Activity
RCO	Regional Contracting Office
SIGE	Safety and Health Protection Plan
TE	Technical Exhibit
USAG	United States Army Garrison
USAREUR	United States Army Europe
UOM	Unit of Measure

PART 3
GOVERNMENT PROPERTY (GP) AND SERVICES

3. Government Property and Services:

The contractor is solely responsible to provide the necessary services, facilities, utilities, equipment, and so forth in order to meet the requirements in this contract.

3.1 Services: N/A

3.2 Facilities: N/A

3.3 Utilities: N/A

3.4 Equipment: N/A

3.5 Special Tooling and Test Equipment: N/A

3.6 Materials: N/A

3.7 Training: N/A

3.8 Common Access Cards (CAC): N/A

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. Contractor Furnished Property and Services

4.1 General: The Contractor shall furnish all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items necessary to perform services as described in the PWS and associated contract documents, except for those items specified in Part 3 Government Property and Services.

4.2 Secret Facility Clearance: Reference paragraph 4.1.

4.3 Materials: Reference paragraph 4.1.

4.4 Vehicles and Equipment: Reference paragraph 4.1.

PART 5 SPECIFIC TASKS

5.1 Basic Services: The Contractor shall provide heavy equipment rental with operator and equipment rental.

5.2 Tasks: Tasks consist of the following sub paragraphs.

5.2.1 Heavy Equipment Rental with Operator Specifications. Heavy Equipment Rental with operator is defined as heavy equipment that continuously requires a qualified driver and/or operator to use properly, and related services. The contractor shall provide equipment rental services with an operator for heavy equipment including, but not limited to, construction, MHE, and other heavy equipment listed below, and related services. Related services includes any services that can reasonably be associated with the rental equipment and equipment operation. For example, if a trash truck or dumpster is rented, removal and disposal of its contents would be considered a related service. The order will provide specifications required for the equipment to include, but not limited to, size, weight, capacity, and capability. For example, if a Forklift is required, the order will specify capacity (e.g. 5K) and any other specifications (e.g. Off-road tires). Additionally, the order may deviate from specifications below, for example if the requirement for Water Distributer is less than a 5000-Gal Water Distributer, the order will specify. The list below is not all encompassing, and the order may specify additional types of construction, MHE, and heavy equipment.

ITEM	DESCRIPTION	EXAMPLE
Hydraulic Excavator 3.0m wide or below* Min. of 2 Tons lifting capacity	A hydraulic excavator shall consist of an upper carriage with hydraulically rotating upper deck (revolving 360°) and attachment, directly mounted to either a wheeled or crawler undercarriage. The front end of the excavator attachment consists either of a bucket, grapple, scrap shear, or another implement. 2cy bucket capacity. Tracked vehicle.	

Vibe Roller	Smooth drum vibe roller, auto vibe function. Must have windshield. 84" compaction width.	
5000-Gal Water Distributor	Capable of driving off road and spraying water from a hose and from the back to spread water for soil compaction. Comes with operator. Includes water refill within 2 hours.	
D7 Dozer	Capable of land clearing, road building, and heavy excavation work. It is also used for agricultural applications such as plowing fields and grading land.	
Backhoe Loader	Backhoe Loader, with operator; shall be capable of digging to a depth of 4' for footers and moving materials such as gravel, sand or earth. Must have functional stabilizer legs and windshield	
Scoop Loader	Task of moving solid materials. Generally, more efficient and faster at moving large volumes of materials.	
Motorized Grader	Use to maintain unpaved roads and establish the final grades on construction projects. Designed to create flat surfaces and can spread dirt and remove debris.	

Dump Truck	Dump Truck (10-ton), with operator; Shall be capable or transporting bulk materials such as dirt, gravel, or waste to and from project site. Must be capable of dumping debris from vehicle. Is responsible for disposal of material.	
Skid Steer	A skid loader, skid-steer loader, SSL, or skidsteer is any of a class of compact heavy equipment with lift arms that can attach to a wide variety of buckets. Must be able to lift at least 500 lb and dig up to 2 feet deep. Must come with these attachments upon request: 20-inch wide by 36-inch long Auger attachment capable of earth excavation, and forklift attachment capable of moving container and equipment weighing up to 1,500 lbs.	
Bulk Trash Removal (With Operator Only)	Removal of Trash and Debris on a daily basis from project site; up to 5 cubic yards per day. Provides mechanism to transport trash and debris off site to a compliant disposal facility. Is responsible for disposal of trash.	
Excavator on Barge with associated Barge for Rubble (With Operator Only)	Waterborne excavation system capable of removing rubble from harbor floor and moving it to a rubble barge. Barge can be the same barge Capable of offloading rubble onto port/pier. 3cy bucket capacity. Capable of excavating to a depth of 3 meters.	

Forklift	Forklift, with operator; Shall be capable of moving containers, equipment, and/or cargo specified at the order.	
Crane	Crane, with operator; Shall be capable of moving containers, equipment, and/or cargo specified at the order.	
Floating 16-TON CRANE (With Operator Only)	Floating Crane, with operator; Shall be capable of moving containers, equipment, and/or cargo. Capable of moving equipment and TRICON size containers from vessel to port.	
Boom Truck	Boom Truck, with operator; Shall be capable of moving containers, equipment, and/or cargo specified at the order.	

5.2.1.1 Option for Heavy Equipment without Operator. It is within the scope of this agreement to contract heavy equipment without a contractor operator at the order level (e.g. Forklift with no contractor operator and operated by the Government). Specific Terms and Conditions for Heavy Equipment without a contractor operator will be established at each order if required and will be in addition the Terms and Conditions in this PWS.

5.2.2 Equipment and Tool Rental Specifications. Equipment and Tools are defined as equipment that does not continuously require a qualified driver and/or operator to use appropriately, and related services. For example, power generators, power washers, and free standing concrete mixers are categorized as Equipment and Tools. The contractor shall provide equipment rental services for construction equipment, tools, and other equipment in support of construction or logistics operations. Related services includes any services that can

reasonably be associated with the rental equipment and equipment operation. For example, if a 60K generator with 12 hours of power is requested, related services includes, but is not limited to, maintenance, fueling, and troubleshooting IAW Para 5.4. The order will provide specifications required for the equipment to include, but not limited to, size, weight, capacity, and capability. For example, if a generator is required to support tools, the order will specify the generator capacity (e.g. 10K), and how many of hours of operation it will use (e.g. 12 hours).

Additionally, the order may deviate from specifications below, for example if the order may specify alternate PSI requirement other than 3000 PSI Pressure Washer. The list below is not all encompassing, and the order may specify additional types of construction equipment, tools, and other equipment in support of construction or logistic operations.

ITEM	DESCRIPTION	EXAMPLE
Flood Lights w/ Attached Generator	Must produce a wide flood light pattern capable of illuminating. With attached generator. Must have wheels. Must produce a minimum of 30000 lumens. Lights will be emplaced and secured in order to prevent tipping or falling.	
Hydraulic Puller	Min Capacity 25T. The hydraulic puller is compact in structure, flexible in use, light in weight, small in size, easy to carry, labor-saving and non-slip	
Pressure Washer	Must be able to provide 3000 PSI; includes water hose to source and to washing wand. Includes soap capability for concrete cleaning.	

Portable Rotary Screw Air Compressor - Tow Behind	Minimum 74 HP Diesel Engine Minimum Requirements: Diesel Engine provides smooth, quiet and economical operation without a DPF System 300 CFM Working Pressure - 100 psi Two 3/4" Air Outlets One 1.4" Air Outlet Direct Drive Rotary Screw Operating RPM (2600) - Idle RPM (1700) Fuel Capacity - 28.6 Gallons Fuel Consumption at Full Load - 4.3 Gallons/Hour Average Fuel Consumption - 1.98 Gallons/Hour at 60% Spin-on Oil Filter and Separator for Easy Maintenance Tire Size - ST185/80/D13 Dimensions - 139"L x 67"W x 63.5"H 2998 lbs Includes Fuel.	
Industrial Fan	Contractor shall provide a free standing fan system capable of providing cool air. Fans shall run on 220V power.	
Storage Container	The contractor shall provide a storage container to store and secure equipment, building materials, and other items. The capability of the containers must include, but are not limited to, the	

	following: weatherproof, ability to seal and lock the doors, generally free of holes and rust. The vendor will have a lead time of 24-hours if the containers will need to be moved from one location to another. Size of container can range from 20-foot, TRICON, or QUADCON. Prior to requesting at the order, the Requiring Activity will receive the appropriate approvals to contract for a container.	
Portable Cement Mixer	Minimum 6 CF	
Jumping Jack Tamper	Tool designed for compacting wet, clay filled soils which also known as cohesive soil. This soil type may have a lot of clay in it, or in simple terms, if it were to rain it would hold the water.	
Concrete Vibrator	A concrete tool that produces stronger concrete by vigorously shaking the concrete right after you pour it to eliminate the air bubbles or air pockets.	

Plate Compactor	6 HP 17" x 21" plate compactor	
Concrete Screed 25'	Must be capable of smoothing large pockets of concrete	
Scaffolding with footers, 6m height	Scaffolding consists of a temporary elevated platform that is used to support materials and employees while they work at heights.	
Acetylene torch	A piece of equipment that burns with a hot flame powered by acetylene and is used for welding, brazing, or soldering	

Generator	Size and capability of generator specified at order. Generator will be used for construction related activities and power output would range between 5kW to 15kW.	
7kw Generator and Welder Combo	A 7kW rating means that the system is capable of producing a maximum of 7 kilowatts, or 7,000 watts, of power at any time. With rod.	

5.2.3 Equipment Rental with Crew Specifications. Equipment Rental with Crew is defined as equipment that continuously requires a qualified driver and/or operator, and crew, to use the equipment properly, and provide the related services. The contractor shall provide equipment rental services with a crew for other drivable equipment including, but not limited to ambulances and fire trucks. Related services includes any services that can reasonably be associated with the rental equipment and equipment operation. For example, a fire truck will include a crew and all necessary equipment to fight a fire, and all related services to fight fire at the place of performance. The order may provide additional specifications required for the equipment. The list below is not all encompassing, and the order may specify additional types of Equipment Rental with Crews.

Ambulance and EMT Crew	Provide ambulance and related services to drive, treat, stabilize, and evacuate casualties to hospitals.	
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Fire Truck with Crew	The contractor shall provide one fire truck with crew. Each crew member will have the required training, tools, and equipment required to perform their duties. The contractor will be responsible for all resourcing, coordination, and execution required to fight a fire.	
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5.2.3.1 Specific Ambulance and EMT Crew Standards. Reference Annex A for Specific Ambulance and EMT Crew Standards.

5.3 Equipment Standards

(a) STD: The standard period for equipment usage will not exceed 12 hours per day. However, the 12-hour work period may vary depending on mission requirements. If equipment is required for over a 12 hour period, it will be annotated in the order so the contractor can appropriately quote additional fuel and labor costs. Additionally, if the requirement for the equipment usage is significantly less than 12 hours per day, that may also be annotated in the order so the contractor can appropriately quote fuel and labor costs. After the award of the order, the COR will inform the equipment operator what work is required for each piece of equipment daily.

(b) STD: Equipment provided by the Contractor must be in good mechanical and working condition except for normal wear-and-tear.

(c) STD: All Equipment shall includes, but is not limited to, power source, fueling/refueling if applicable, cables and necessary equipment to provide services, and HAZMAT removal if applicable.

(d) STD: Each vehicle/piece of equipment shall have a full tank of fuel prior to the start of each mission. All fuel required for the equipment operation during the 12-hour period shall be provided by the contractor and shall not be priced separately. If the order specifies an alternate usage period other than 12-hours, the contractor is responsible for providing fuel for the entirety of that specified usage period.

(e) STD: Contractor is obligated to comply with generally accepted standards of the commercial industry for operation and maintenance practices. As a minimum, Contractor shall comply with all provisions of applicable statutes and agreements which may affect safety, and with all Host Nation laws, regulations, directives, orders, rules and standards pertaining to service provided here under.

(f) STD: All equipment and operators shall be licensed and authorized to operate at locations specified in the place of performance.

(g) STD: The contractor shall provide all fuel, oils, vehicle insurance, tools, base access, economic zone fees, tolls, entry fees, repairs, maintenance, and any other operational costs for all equipment to be fully operational for the duration of this contract.

(h) STD: All mechanical controls shall be operative. All equipment shall be operative and kept in line with manufacturer's recommended maintenance program.

(i) STD: The Contractor shall maintain each piece of equipment pursuant to local and country safety requirements.

(j) STD: The contractor shall provide full service and will be solely responsible for all equipment. The operators shall have experience on the equipment they are operating. The contractor shall be cleared, through own expense and process, to conduct business unescorted inside all areas within the Place of Performance.

(k) STD: Equipment, Operators, and operations shall comply with all applicable Host Nation regulations; to included licenses and registration. The contractor shall provide any requested documentation (such as licenses) in advance of a performance for review and acceptance by USG.

(l) STD: Upon notification by the COR or contracting officer, the contractor shall recover disabled equipment within 24 hours. The contractor shall provide a replacement for all disabled equipment at the time of recovery.

(m) STD: All Equipment rented using this agreement, including, but not limited to, Hand or Measuring Tools, shall be in compliance with DFARS 225.7002-1.

5.4 Power Generation. The Contractor shall provide power generation and related services for the specifications identified at the order. Includes, but is not limited to, fueling/refueling, all cabling/accessories necessary to provide services, and HAZMAT disposal. If any requirements deviate from the sub paragraphs below, it will specify at the order.

(a) STD: Generator set shall be rated for continuous prime power, shall have an output rated at 120V, 3-wire, 60 hertz, with a maximum voltage drop of 5% and a rated temperature rise of no more than 105C. The generator set must also be of the lowest decibel / noise capability possible. Generator will be tested for compliance with most current US National Electric Code (NEC) / National Electrical Safety Code (NESC) standards.

(b) STD: Cabling - The feeder cables from generator shall be sized IAW NEC / IEC guidelines. All cables shall be protected by watertight 100mm thick-wall PVC conduit. Conduit ends shall be sealed to prevent the intrusion of moisture or rodents. Conduit sections shall be joined continuously using couplings approved for the conduit, and sections shall be prepared and cleaned per the manufacturer's specifications before gluing. Conduit may run directly on

the ground, however, it shall not be run in drainage trenches or across vehicle or pedestrian pathways. If cabling is absolutely required to run where vehicle or pedestrian traffic may occur, the conduit will be protected with ramps or linebackers, and clearly marked with "High Voltage" Signs. The test shall be conducted under load.

(c) STD: Power Distribution - From the transformer, applicable cabling and distribution boxes to split the power in multiple directions and enable its use through conventional three prong power chords.

(d) STD: Breaker Box - The Contractor shall provide 35A Breaker Box per generator with the appropriate cords providing voltage stepdown from 220V to 120V capability. The amount and length of the chords will be determined by the contractor to power the equipment specified at the order, or the amount and length of chords will be specified at the order.

(e) STD: Portable Transformers - The Contractor shall provide 120V to 220V 3KW portable transformers for each Generator. The Contractor shall also have a sufficient number of replacement fuses on site. The Contractor shall have the transformers available for use; however, the Contractor will only charge the Government for the actual use of the transformers. The on-site POC will coordinate with the Contractor if and when the transformers are required. Supplemental Power Supplies; The Contractor shall provide U.S. (three prong) to EURO Electric AC Wall Plug adapters and U.S. (three prong) to EURO Electric AC power strips

(f) STD: Testing - The Contractor shall test each generator in the presence of the Contracting Officer's Representative (COR). The test shall include running the generators in parallel (if necessary) to verify synchronization and proper voltage and frequency, and running the generators under the tent load to verify that all building systems such as lights and receptacles work properly when connected to the leased generators. Generator will be tested for compliance with most current US National Electric Code (NEC) / National Electrical Safety Code (NESC) standards.

(g) STD: Electrical Standards. Adhere to all standards in Para 5.4 and 5.11.

(h) STD: Fuel - The contractor is solely responsible for fueling to ensure continuous operations.

(i) STD: HAZMAT - The Contractor shall adhere to paragraph 5.7.

5.5 Maintenance. The contractor shall ensure all equipment meets or exceeds the following minimum maintenance standards at the time of acceptance and throughout the specified period of performance.

(a) STD: The contractor is responsible for all scheduled and unscheduled maintenance of vehicles. The contractor shall provide all parts and labor necessary to complete required maintenance tasks at no additional cost to an already agreed upon/negotiated lease rate. Contractor provided parts may include, but are not limited to, wind

shield wipers, tires, headlamps, filters, fluids, and lubricants. Maintenance shall be performed according to the manufacturer's recommended maintenance schedule.

(b) STD: If the contractor's scheduled or unscheduled maintenance results in the Government losing use of equipment for more than 12 hours, the contractor shall provide a replacement of a comparable capability for the Government to use.

5.6 Equipment Operators.

(a) STD: Equipment operators may be required to work a 12-hour periods with possible night operations. The contractor is responsible for ensuring the operator hours of operation are in accordance with Host Nation and local laws, policies, and regulations. The contractors quote shall include any labor required to adhere to these requirements. Also, in the event an order requires over 12-hours of labor, the contractor quote shall include any additional labor required to adhere to these requirements.

(b) STD: Equipment operators shall be proficient in conversational Basic English and able to translate directions / instructions from the COR.

(c) STD: Equipment operators will keep on their person at all times a valid license or equal documentation that may be required by the host nation as proof for legal operation of the vehicle/equipment in which they are assigned to drive/operate.

(d) STD: Equipment operators shall have a means of communication, and be reachable during prescribed duty hours.

(e) STD: The contact information for each operator shall be provided to the Contracting Officer and Contracting Officer Representative (COR) prior to delivery. The government will not provide cell phones to any vehicle/equipment operators.

(f) STD: The government will not provide hotel accommodations or meals to any equipment operator.

5.7 HAZMAT

(a) STD: All hazardous materials (HAZMAT) used on vehicle/equipment must be contained and stored in the appropriate storage containers and/or cabinets. The contractor shall immediately report spills or releases of hazardous materials to the COR. The contractor shall be liable for containment and environmental cleanup of spill or release of such substance. The contractor shall follow manufacturer's guidelines and professional recommendations for control of humidity, temperature, cleanliness, and materials handling. The contractor shall comply with environmental and hazardous materials storage and handling requirements. The contractor will comply with Host Nation and municipal environmental laws to protect the health and safety of employees / residents and minimize or eliminate environmental pollution.

5.8 Permits.

(a) STD: Contractor shall submit a request to obtain all appropriate permits required to fulfill the requirements of this PWS. The contractor shall not perform any work required by the issuance of a permit prior to obtaining the required permit.

5.9 OPSEC.

(a) STD: Contractor will instruct their equipment operators to not share details of any work including, but not limited to equipment downloaded, cargo destinations, and any other details of their work on social media. Failure to comply may result in contract cancellation.

5.10 Damages.

(a) STD: The Government shall not be responsible for acts of God that may result in damage to any vehicle (i.e. hail storms, thunderstorms etc.). In addition, the Government shall not be responsible for normal depreciation to the vehicles. For purposes of this contract, "normal depreciation" is defined as the wear and tear that can reasonably be expected to result given the vehicle's use by equipment-laden troops in a harsh environment. Normal depreciation includes, but is not limited to, minor scratches and dents to vehicle's exterior, minor damage to seat coverings, and the presence of dirt or sand. The Government will only be responsible for damage in excess of normal wear that results from negligence, neglect, or similar acts of the Government. All contractor claims for damage by the Government shall be submitted to the contracting officer for consideration in accordance with FAR Part 33.2. 5.3.2 The contractor shall report all incidents of damage or destruction to property (material, supplies, freight, or property of any type), or personal injury or death to any person, arising out of and during the performance of this contract to the Contract Officer Representative (COR) immediately. A complete written report shall be submitted within 96 hours after occurrence of the incident to the COR. Damages or destruction caused by the contractor and/or the contractor's provided drivers will be replaced or repaired to original condition by the contractor at no cost to the US Government. Contractor will have insurance for all vehicles and operators in accordance with applicable Host Nation law. The contractor shall provide a single Point of Contact (POC) that may be reached at any time, 24- hours a day and 7-days a week, for the scheduling of any necessary services or issues that may arise.

5.11 Electrical Standards. All equipment / services listed in this PWS will adhere to standards within this paragraph when electrical is required.

5.11.1 If GFCI is not available then Residual Current Disruptors (RCDs) shall be used. They shall be rated to trip at no more than 5 milliamps. This is required to be placed for each circuit leading to the shower.

5.11.2 If NEMA 3R (waterproof enclosures) are not available in country, then the enclosures shall be placed so they are protected from the elements (not inside the shower).

5.11.3 Provide grounding to all electrical equipment to include, but not limited to, generators, reefers, A/C units, appliances and pumps. Ground all metal boxes. Provide switches and receptacles rated for wet locations, and provided GFCI-rated outlets or breakers for outlets installed in wet locations. Plastic breaker boxes, plastic pipes, and plastic water heaters should all be grounded as well.

5.11.4 Run the grounding conductor from the generators to each load (bond neutral and GND at the generator). Or run feeder cable to the main panel, bond neutral to ground at the main panel, install grounding rod at the panel and run grounding conductor for each circuit.

5.11.5 Do not splice multiple circuits at the generator; must provide the switchboard.

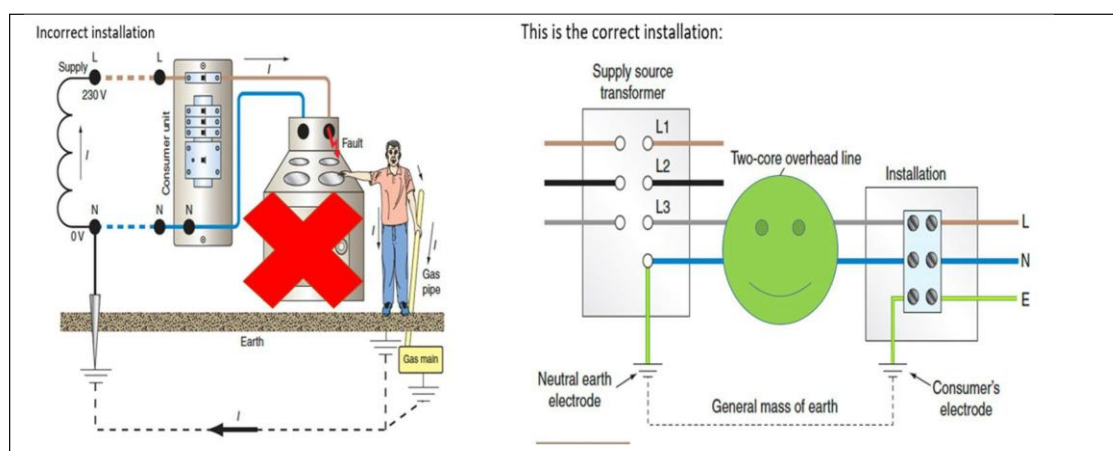
5.11.6 Circuit Breaker shall be properly sized to protect conductors and in some instances equipment.

5.11.7 GFCI outlets shall be provided for wet locations: outdoors, kitchens, and bathrooms/showers. Circuit breakers in shower/latrine unities shall be GFCI protected.

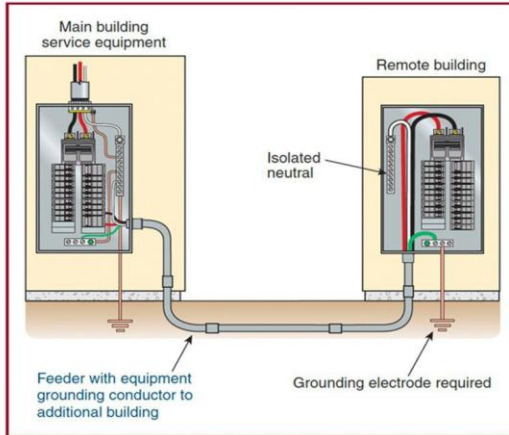
5.11.8 Conduit sections shall be joined continuously using couplings. Electrical tape should not replace an approved coupling.

5.11.9 Equipment requiring grounding shall be properly grounded using a ground resistance of no greater than 10 ohms. The ground rod shall be no less than 2.5 meters long. The grounding conductor shall be no less than #6 AWG or local equivalent. Ground resistance testing shall be no greater than 10 ohms, and may require multiple ground rods. Ground testing results will be provided to the onsite POC or designated representative.

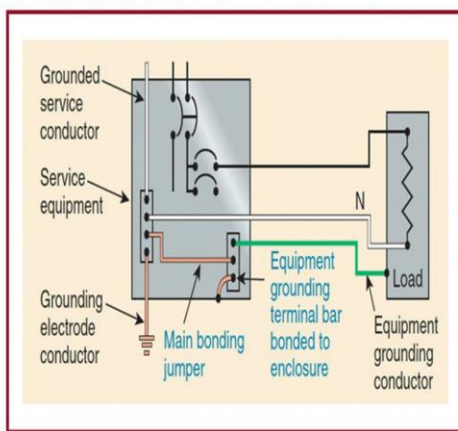
5.11.10 Electrical standard table:



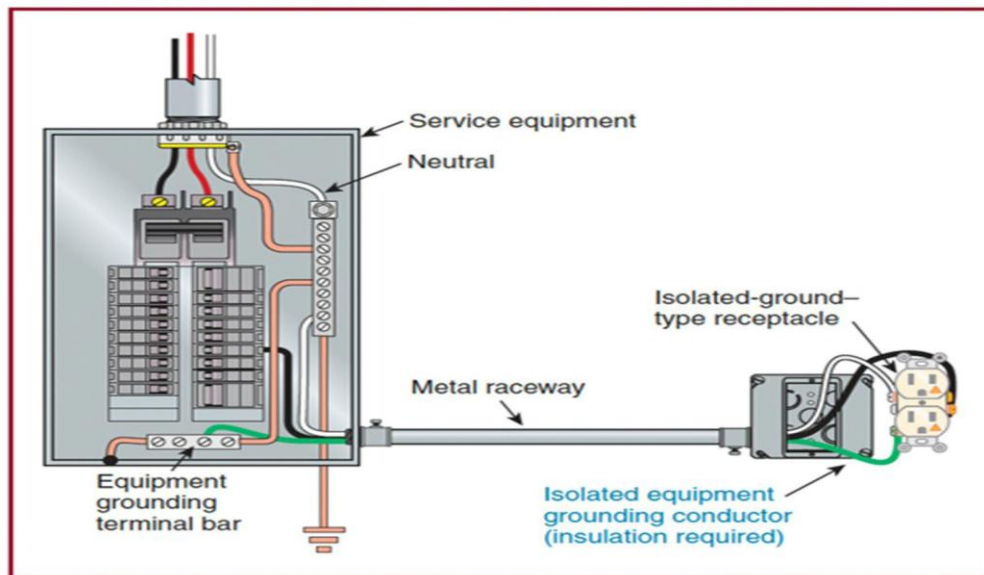
Proper wiring, grounding, and bonding when you have main panel and sub-panels.



Proper wiring and grounding of equipment



Proper wiring and grounding of lighting and receptacle loads



PART 6

APPLICABLE PUBLICATIONS

6. Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

- 6.1.1 Department Of Defense Contract Security Classification Specification (DD Form 254)
- 6.1.2 Department of Defense Security Agreement (DD Form 441)
- 6.1.3 National Industrial Security Program Operating Manual (DoD 5220.22-M)
- 6.1.4 Installation Access Control (AE Reg 190-16)
- 6.1.5 The Army Physical Security Program (AR 190-13)
- 6.1.6 Contractor Identification (AE Reg 27-715)
- 6.1.7 U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1)
- 6.1.8 Information Assurance Workforce Improvement Program (DoD 8570-M)
- 6.1.9 Information Assurance Training Certification and Workforce Management Directive (DoDD 8570.01)
- 6.1.10 Information Assurance (AR 25-2)
- 6.1.11 Electromagnetic Compatibility Directive (2004/108/EC)
- 6.1.12 Policies and Procedures for Property Accountability (AR 735-5)

PART 7
ATTACHMENT AND TECHNICAL EXHIBIT LISTING

7. Attachment and Technical Exhibit List

7.1 Technical Exhibit A – Performance Requirements Summary

7.2 Technical Exhibit B – Deliverables Schedule

TECHNICAL EXHIBIT A

PERFORMANCE OBJECTIVE	STANDARD	PERFORMANCE THRESHOLD ACCEPTABLE QUALITY LEVELS (AQLs)	METHOD OF SURVEILLANCE
PRS#1 - PWS para (5.2) Contractor shall comply with all Equipment Rental Services.	Standards are specified in 5.2.	AQL 100%.	Periodic Inspection Customer Feedback
PRS#2 - PWS para (5.4, 5.11) Contractor shall comply with all Electrical Standards, and Host Nation and local laws.	Standards are specified in 5.4 and 5.11.	AQL 100%	100% Inspection Periodic Inspection Customer Feedback
PRS#3 - PWS para (5.7) Contractor shall comply with all Environmental Standards, and Host Nation and local laws.	Standards are specified in 5.7.	AQL 100%	100% Inspection Periodic Inspection Customer Feedback
PRS#4 - PWS para (1.24) Contractor shall comply with all establish standards, laws, and regulations.	The Contractor shall conduct work in accordance with this PWS and all applicable United States (U.S.), Host Nation, and local laws, regulations, standards, provisions, and directives to include applicable publications in Part 5.	AQL 100%	Random Sample

TECHNICAL EXHIBIT B
DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Name and contact information of the Contract Manager and designated alternate	Within 3 days of award	1 copy	Email	KO and COR
Names and Photocopies of Identification for all Contractor Employees requiring access to the place/location of performance	Within 3 days of award	1 copy	MS Word or PDF	KO and COR
Equipment Pre- Inspection Sheet	3 days after delivery	1 copy	PDF	KO and COR
Equipment Post- Inspection Sheet	3 days after completion of services	1 copy	PDF	KO and COR